

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: September 11, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER DENYING COMPLAINANT’S FOURTH MOTION TO EXTEND DEADLINES

On August 26, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”), filed Complainant’s Fourth Motion to Extend Deadlines (“MTE”). Pursuant to 46 C.F.R. ¶ 502.105, I ordered Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Marittima SPA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pet. Ltd. (collectively, “Evergreen” or “Respondents”)); and Yang Ming Marine Transport Corporation (“Yang Ming” or collectively with Evergreen, “Respondents”), to file their opposition by August 31, 2026, and set a status conference for September 1, 2026. Evergreen and Yang Ming timely filed a joint Opposition to Motion (“Opposition”) and the status conference was held.

NBG seeks a four-week extension of the remaining deadlines set forth in the Third Amended Scheduling Order because three former employees “whom NBG subpoenaed” have either not responded to the subpoenas or have failed to appear at a scheduled deposition. MTE at 1. The Opposition to the MTE revealed, however, that the three witnesses who have either failed to appear for a scheduled deposition, failed to agree to a date to be deposed, or failed to respond to the subpoena to testify, were subpoenaed by Respondents, not by NBG. Opposition at 2. Moreover, Respondents stated at the status conference that they will not pursue enforcement of the subpoenas, and they no longer wish to depose the three former NBG employees because the time in which to depose fact witnesses has passed, it would be too time-consuming to schedule two days of depositions (one for each Respondent) for each of the three witnesses, and responsibilities in other cases require counsel’s attention. In addition, Respondents contend that

the testimony they intended to elicit from the three fact witnesses is no longer necessary because emails and other documents produced in discovery provide the information they sought.

It is unclear why Complainant did not subpoena these three former employees if they were necessary to NBG's claims, particularly since NBG maintains that two of the witnesses have not "responded to any of NBG's subsequent outreach, which included multiple telephone calls and emails" and one failed to show up the day of his scheduled deposition. MTE 3-4.

NBG also states that if it is unable to obtain oral testimony from the three witnesses, it "reserves all rights to obtain that witness's testimony by any other means available under the Commission's rules, including by written questions. *See* C.F.R. § 502.144(a)(1)." MTE at 6. Respondents contend that since NBG agreed to accept service of the subpoenas, implying it had control of the witnesses, and those witnesses have avoided testifying under oath, "NBG should now be precluded from offering their testimony by way of written statements." Opposition at 2 (citing, generally, *Perdue Farms, Inc. v. National Labor Relations Board*, 144 F.3d 830, 835 (D.C. Cir. 1998)). NBG does not move for permission to seek witness testimony by written question, so there is no issue to resolve in that regard. *See* MTE at 6, 8.

Leaving aside the issue of whether NBG "controlled" the former employee witnesses who failed to comply with the subpoenas or seek to quash them, because NBG did not subpoena the three witnesses to testify, it has no standing to seek enforcement of the subpoenas, nor did it move to do so. Because NBG cannot enforce Respondents' subpoenas, and Respondents refuse to do so, good cause has not been established to extend the deadlines.

Although Respondents did not style their response to the MTE as a partial opposition, they expressed in both the Opposition and at the status conference that they oppose extending the schedule to accommodate the recalcitrant former employee witnesses but wish to extend only the portion of the schedule that applies to their own briefing. The MTE filed by NBG is the only motion pending. Respondent has neither filed nor joined in a motion to extend, so it is not necessary to determine whether good cause exists for an extension that applies only to Respondents' briefing.

Good cause not being found, Complainant's Fourth Motion to Extend Deadlines is **DENIED**.



Linda S. Harris Crovella
Administrative Law Judge